

November 12, 2014



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 15448
(THIRD REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See Individual Authorization Letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Class 1 materials under an Interim Hazard Classification. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.320 in that each package containing Class 1 material must be marked with an EX number, 173.51 and 173.56 in that an explosive must be approved prior to being transported, 173.57 and 173.58 in that an explosive must be subjected to the prescribed testing prior to being transported, and 173.60(b)(14) and 173.62(c)(5) in that the proposed packaging must be approved by the Associate Administrator, except as provided herein.
5. BASIS: This special permit is based on the application of U.S. Department of Defense dated May 1, 2014, submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
As appropriate	1.1, 1.2, 1.3, 1.4, 1.5, 1.6	As appropriate	II
As appropriate	2.1, 2.2, 2.3	As appropriate	N/A
As appropriate	3	As appropriate	As appropriate
As appropriate	4.1, 4.2, 4.3	As appropriate	As appropriate
As appropriate	5.1, 5.2	As appropriate	As appropriate
As appropriate	6.1, 6.2	As appropriate	As appropriate
As appropriate	7	As appropriate	N/A
As appropriate	8	As appropriate	As appropriate
As appropriate	9	As appropriate	As appropriate
N/A	Not Regulated (N.R.)	N/A	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging, marking, and labeling is as required by the HMR and the Joint Technical Bulletin 700-2 Department of Defense Ammunition and Explosives Hazard Classification Procedures, hereby referred to as the TB 700-2. Packagings which fall under § 173.62(c), Packaging Instruction 101, must be approved by one of the organizations listed under paragraph 7.c. of this Special Permit.

b. Operational Controls - All Grantees must follow the TB 700-2.

c. Each Interim Hazard Classification (IHC) must be approved (by signature) by a designated Federal employee of one of the following organizations:

- US Army Technical Center for Explosives Safety
- US Navy Naval Ordnance Safety and Security Activity
- US Air Force Safety Center
- US Department of Energy National Nuclear Security Administration Associate Administrator for Safety and Health

d. Each organization listed above is authorized to delegate IHC approval authority to specific Federal employees within supplementary DOD and Department of Energy (DOE) organizations.

e. Any delegation of authority will be in writing and will be made available upon request to a DOT Pipeline Hazardous Materials Safety Administration (PHMSA) Federal employee by the Surface Deployment and Distribution Command (SDDC) Safety Office for the DOD, or by the National Nuclear Security Administration Office of the Associate Administrator for Safety and Health for the DOE.

f. Upon request by a DOT PHMSA Federal employee, the SDDC Safety Office for the DOD or the National Nuclear Security Administration Office of the Associate Administrator for Safety and Health for the DOE, must provide a copy of all

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IHCs currently valid for domestic transport in commerce.

g. Every approved IHC is only valid for transport in commerce executed on behalf of the DOD or the DOE as prescribed in the TB 700-2.

h. The duration of the IHC and the procedures for renewal will be governed by the TB 700-2.

i. If an unusual or non-customary need for IHC issuance arises, the DOD or DOE, via email as required, will notify the Associate Administrator through the Approvals and Permits Division of that occurrence and the circumstances.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: As authorized by the HMR.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, aircraft, or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

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- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BV/TG